

**JUDGMENT SHEET
IN THE PESHAWAR HIGH COURT,
PESHAWAR**
(*Judicial Department*)

W.P No.7875-P/2025

Muhammad Ishaq Khan son of Reayat Khan,
resident of House No.401, D-2, Zone-4, Regi
Model Town, Peshawar

Vs.

Government of Khyber Pakhtunkhwa, through
Chief Secretary, Civil Secretariat, Peshawar,
and others

For petitioner: Syed Haziq Ali Shah, Advocate.
For respondents: Mr. Bilal Khan, AAG.
Date of hearing: 19.05.2026.

INAM ULLAH KHAN, J.- Through this petition under Article 199 of the Constitution, the petitioner prayed for the following relief:

In view of the above, it is humbly prayed that this Hon'ble Court may graciously be pleased to:

- a. Declare the decision of omitting the post of Procurement Specialist in the revised PC-1 of the Project as illegal, unlawful, without any lawful authority, void-ab-initio and ineffective upon the rights of the petitioner and set-aside the same.
- b. Direct the respondents to treat the petitioner in accordance with law.
- c. Direct the respondents to consider the petitioner for the post of procurement Specialist in the project for the remaining life of the project.

- d. Any other relief as may be deemed appropriate by this Hon'ble Court may also be granted.

2. The petitioner is a highly qualified and experienced professional in the fields of agriculture economics and procurement. He obtained a Master's degree in Procurement and Supply Chain Management from Sheffield Hallam University in 2011 and a B.S. degree in Agriculture Economics from The University of Agriculture Peshawar in 2008. He was appointed as Procurement Specialist (BPS-18) on contract basis in the project titled "Tele-Farming and Digital Services Platform" under the Agriculture Extension Wing, Agriculture Department, Government of Khyber Pakhtunkhwa, vide notification dated 02.12.2022, and his contract was subsequently extended for the following financial years. The project was initiated to modernize agriculture, improve food security, and provide digital and AI-based services to farmers. The petitioner served as the only Procurement Specialist in the project and was also entrusted with additional procurement responsibilities for other projects of the Directorate General Agriculture (Extension). On 06.12.2024, during the Pre-Provincial Development Working Party (Pre-PDWP) meeting, the project was placed under Cost Reduced Scope (CRS), and it was recommended that a revised PC-1 be submitted with reduced cost and scope. While most posts were retained, the post of Procurement Specialist was abolished. The Chief Planning Officer of the project later requested amendment of the Pre-PDWP minutes, stating that all already filled positions should continue in the revised

PC-1. However, without making the requested corrections, the Provincial Development Working Party (PDWP), in its meeting dated 27.02.2025, approved the revised PC-1 at a reduced cost, and the Finance Department also concurred with the revision. Consequently, on 28.07.2025, the revised PC-1 was finally approved, abolishing the petitioner's post while retaining other positions. The petitioner contends that abolition of the only procurement post in a project involving substantial procurement of agricultural and IT-related goods and services is arbitrary, mala fide, and likely to adversely affect the functioning of the project and public interest. Despite filing representations before the concerned authorities for restoration of his post, no relief was granted. Aggrieved by the actions and inactions of the respondents, the petitioner has invoked the jurisdiction of this Court.

3. The respondents filed comments admitting the petitioner's appointment and the objectives of the "Tele-Farming and Digital Services Platform." They averred that the PC-1 of a project is subject to revision and restructuring under the applicable policy framework and that the petitioner's appointment was purely contractual and project-specific, conferring no vested right to continuation. It was further stated that the petitioner's contract expired on 30.06.2025, and prior notice was issued in accordance with the Project Implementation Policy, 2022. The respondents further submitted that, due to reduction in the scope and cost of the project, several posts, including that of Procurement Specialist, were lawfully abolished with the approval of the competent authority/PDWP, Finance

Department, and administrative authorities. The decision was stated to be bona fide and taken in the interest of fiscal prudence and administrative efficiency, while procurement functions could be performed through the notified procurement committee under the KPPRA Rules. The allegations of mala fide and discrimination were categorically denied, and it was asserted that the petitioner's representations were duly considered but rejected in the larger public interest.

4. Arguments heard and record perused.

5. It is well established that matters relating to the restructuring of projects, the abolition or creation of posts, financial rationalization, allocation of resources, and revision of PC-1 are administrative and policy matters to be decided by the competent authorities in accordance with prevailing financial constraints, developmental priorities, and public interest. The Court ordinarily refrains from substituting its own opinion for that of the Executive in such matters, particularly where the decision has been taken after due deliberation and approval by the competent forums. In the instant case, the reduction in the scope and cost of the project, along with the consequent abolition of certain posts, including that of the petitioner, was approved by the competent authorities, namely the PDWP, Finance Department, and the Administrative Department. Such restructuring constitutes a policy and administrative decision aimed at ensuring fiscal prudence and the efficient utilization of public resources. The petitioner has failed to establish any mala fide, violation of law, or infringement of any vested or fundamental right so as to justify interference

by this Court in the exercise of its constitutional jurisdiction. In this context, it is pertinent to observe that such a policy decision of the Government cannot be assailed through the constitutional jurisdiction of this Court. It is a well-settled principle of law that courts cannot assume the role of an appellate authority to examine the wisdom, propriety, or efficacy of a policy decision, nor can they act as advisors to the Executive in matters pertaining to policy formulation, which squarely fall within the domain of the Executive. Reliance in this regard is placed on the judgment of the apex court rendered in the case of Syed Azam Shah v. Federation of Pakistan through Secretary Cabinet Division, Cabinet Secretariat, Islamabad and another (2022 SCMR 201), wherein it is held that:

12. The decision of Steering Committee was not particularized or person specific to the appellant but it was made applicable across the board for all Principals, Professors and Teachers in BS-20 and above which does not seem to be discriminatory or arbitrary but on account of reasonable classification with rational nexus. The compass and magnitude of judicial review of government policy is now well settled and defined in which neither the Court can act or represent as appellate authority with the aim of scrutinizing the rightness, fittingness and aptness of a policy nor may act as advisor to the executives on matters of policy which they are entitled to formulate. The extensiveness of judicial review of a policy is to test out whether it violates the fundamental rights of the citizens or is at variance to the provisions of the Constitution, or opposed to any statutory provision or demonstrably arbitrary or discriminately. The Court may invalidate laws, acts and governmental actions that are incompatible with a higher authority more so, an executive decision may be invalidated for being unlawful and also maintains check and balance. This can be sought on the grounds that a decision arises when a decision-maker misdirects itself in law, exercises a power wrongly, or improperly purports to exercise a power that it does not have, which is known as acting ultra vires; a decision may be challenged as unreasonable if it is so

unreasonable that no reasonable authority could ever have come to it or a failure to observe statutory procedures. The dominance of judicial review of the executive and legislative action must be kept within the precincts of constitutional structure."

In another case titled as Abdul Hameed and others v. Water and Power Development Authority through Chairman, Lahore and others (2021 SCMR 1230), it was observed that it is not the role of the courts to interfere in policy decisions, unless it is manifest that such policy decisions are the outcome of arbitrary exercise of power, *mala fides*, patently illegal or manifestly unreasonable.

Reliance is also placed on case of Peshawar Electric Supply Company Ltd. (PESCO) and another v. SS Polypropylene (Pvt.) Ltd., Peshawar and others, (PLD 2023 Supreme Court 316), wherein it is observed that:

24. As noted above, the High Court appears to have arbitrarily interfered in a policy matters which it should have been reluctant to do considering that such matters concern complex factors which have a direct impact on the economy of the country. Where the legislature has expressly provided an authority for determination in such matters, in the shape of NEPRA, then, such authority allowed to perform its functions because it has technical knowhow owing to the fact that it comprises members from various technical fields. It has been held by this Court that in cases involving utilities and economic regulation, there are good reasons for judicial restraint and/or judicial deference to legislative judgment. It is not the responsibility of the Court to regulate economic policy. The responsibility of the Courts is limited to legal interpretation. The Court is expected to enforce fundamental rights reasonably and not in a manner which creates hurdles and unnecessary complications. In the instant case with all due respect, the learned High Court has overstepped its jurisdiction under Article 199 of the Constitution and, has

overridden the policy/framework of NEPRA which matter is beyond the jurisdictional parameters of the High Court. In such a situation, the learned High Court was required to exercise self-restraint and defer the matter for determination to NEPRA. Reliance in this respect is placed on the case of Elahi Cotton Limited v. Federation of Pakistan (PLD 1997 Supreme Court 582.

6. Being so, this court is not supposed to interfere in the policy decision of the Government. Resultantly, the instant writ petition is found to be without any substance and is accordingly dismissed.

Announced
19.05.2026

(M.Iqbal)

SENIOR PUISNE JUDGE

JUDGE

(D.B.) Hon'ble Mr. Justice Ijaz Anwar and Hon'ble Mr. Justice Inam Ullah Khan.